

23NWCV02321 23NWCV02321

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#16

FLORENDO v. DOLLAR

TREE STORES, INC.

CASE NO.: 23NWCV02321

HEARING: Thursday, August 13, 2026, at 9:30 AM

I.

Defendant DOLLAR TREE STORES, INC's Motion to Compel Discovery into Psychological Claims is DENIED as to Production of Documents. Defendant DOLLAR TREE STORES, INC's Motion to Compel an Independent Mental Examination is CONTINUED to Tuesday, September 8, 2026, at 9:30 AM in Dept. SE-R.

II.

Defendant DOLLAR TREE STORES, INC's Motion for Protective Order is CONTINUED to Tuesday, September 8, 2026, at 9:30 AM in Dept. SE-R.

Moving Party
to give notice.

Given the Court's ruling, the Court will confer with Counsel on continuing the trial date. The Court finds outstanding discovery remains such that the October 13, 2026, trial date is unrealistic.

Background

On July 24, 2023, Plaintiff JENNIFER FLORENDO (“Plaintiff”) filed this Negligence action against Defendants DOLLAR TREE STORES, INC. (“Defendant”) and DOES 1 through 100, inclusive.

Defendants WHITTIER CITY SCHOOL DISTRICT and ROBERTO PETER MEDINA (“Defendants”) now seek an order granting leave of the Court to obtain a neurosurgical examination of Plaintiff AGUSTINA CISNEROS (“Plaintiff”).

Motion for Protective Order

The Court may issue an order to protect any party, person, or organization from unwarranted annoyance, embarrassment, oppression, undue burden, or expense associated with responding to interrogatories, demands for production of documents, and requests for admissions. (CCP §§ 2030.090(b), 2031.060(b), 2033.080(b). There is a presumptive limit of no more than 35 requests for admissions and specially prepared interrogatories (CCP §§ 2030.030(b), 2033.030(b).) To exceed the statutory limit, the requesting party must include a declaration of necessity, explaining why excessive requests are necessary. (CCP §§ 2030.030(c), 2033.030(b), 2030.040-2030.050, 2033.040-2033.050.)

Defendant seeks a protective order from Plaintiff’s most recent set of written discovery, which consists of:

74

Special Interrogatories;

68

Request for Production of Documents;

35

Requests for Admission; and

9

Form Interrogatories

Defendant contend Plaintiff's requests are duplicative and unduly burdensome. Defendant argues Plaintiff fail to show good cause for excessive discovery requests.

While the Court understands Plaintiff needs additional discovery because deposition testimony identified systems, records, and responsible personnel that required inquiry by Dollar Tree," the number of requests is excessive. However, Defendant's proposed protective order asks Plaintiff to withdraw every request. The Court believes Defendant's proposed protective order is overbroad.

Further, the Court does not believe Counsel have exhausted their meet and confer obligations pursuant to Code. Indeed, Counsel Sallander declared that on May 28, 2026, he sent a letter to Plaintiff Counsel asking Counsel to withdraw the cumulative, excessive, and duplicative discovery requests. Counsel are advised that their meet and confer efforts should go beyond merely sending letters stating their respective positions. (See *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) "A determination of whether an attempt at informal resolution is adequate...involves the exercise of discretion. The level of effort at an informal resolution which satisfies the 'reasonable and good faith attempt' standard depends upon the circumstances. In a larger, more complex discovery request, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of the discovery requested, the prospects for success and other similar factors can be relevant. Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances." (*Obregon v. Sup. Ct.* (1998) 67 Cal.App.4th 424, 431.)

Therefore, the Court ORDERS the parties to meet and confer. Thereafter, the parties must submit a JOINT PROTECTIVE ORDER. If the parties agree on a protective order, the matter will be taken off calendar.

If the parties are unable to stipulate to a protective order, each party may submit a proposed protective order to the Court by Friday, August 28, 2026. The

Court will consider the proposed protective orders and issue a ruling thereafter.

Compel Production

Defendant

moves to compel Plaintiff's production of her psychological, psychiatric, and mental health records. Plaintiff agrees that, "Plaintiff has placed in controversy the psychological conditions for which she seeks damages, including their existence, severity, causation, and alleged aggravation." (Opposition at p. 6:22-23.)

Moreover, Defendant remains agreeable to a limited scope of production and an appropriate protective order.

Therefore,

the Court ORDERS the parties to meet and confer. Thereafter, the parties must submit a JOINT PROTECTIVE ORDER limiting what documents may and may not be produced. If the parties agree on a protective order, the matter will be taken off calendar.

If the

parties are unable to stipulate to a protective order, each party may submit a proposed protective order to the Court by Friday, August 28, 2026. The Court will consider the proposed protective orders and issue a ruling thereafter.

Independent Medical Examination

"The

court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown." (CCP §2032.320.)

Code

of Civil Procedure section 2032.310, subdivision (b) provides: "A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." Moreover, Pursuant to Section 2032.320, subdivision

(d), the specific diagnostic tests to be performed must be explicitly identified in the court's order and include the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (See *Carpenter v. Sup. Ct.* (2006) 141 Cal.App.4th 249, 260-262.)

To comply with Code of Civil Procedure section 2032.320, the Court's order must be able to set forth the names of the tests, and any names provided must have "so precise and finite a meaning in the mental health profession as to be the functional equivalent of a list of specific tests." (*Id.* at p. 269.)

Similar to the above ruling, the Court does not believe Counsel have exhausted their meet and confer obligations pursuant to Code.

Therefore, the Court ORDERS the parties to meet and confer and the matter is CONTINUED.